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The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

අංක 2117/33 – 2019 අප්‍රේල් මස 03 වැනි බදාදා – 2019.04.03

No. 2117/33 – WEDNESDAY, APRIL 03, 2019

(Published by Authority)

PART I : SECTION (I) – GENERAL

Government Notifications

My No.: IR/COM/01/2017/116.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4(1)

WHERE as an industrial dispute in respect of the matter/specified in the statement of the Commissioner of Labour which accompanies this order exists between,

Trade Union of Mihin Lanka, (On behalf of Chief Organizer - Mr. R. A. S. Lionel Premasiri and 49 employees) No. 497/1A, Heenkenda, Ragama) *of the one part*

and

Mihin Lanka (Pvt) Ltd, EML Building, No. 61, W. A. D. Ramanayaka Mawatha, Colombo 02 *of the other part*

Now Therefore, I, Ravindra Samaraweera, Minister of Labour and Trade Union Relations do by virtue of the powers vested in me by Section 4 (1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act, No. 37 of 1968 hereby appoint.

Mr. L. R. Sumathipala, Principal Quarters, Nurses Training School, Kandy to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

Colombo.
26th March, 2019.

RAVINDRA SAMARAWEEERA,
Minister of Labour and Trade Union Relations.



My No.: IR/COM/01/2017/116.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Trade Union of Mihin Lanka, (On behalf of Chief Organizer - Mr. R. A. S. Lionel Premasiri and 49 employees) 497/1A,
Heenkenda, Ragama *of the one part*

and

Mihin Lanka (Pvt) Ltd, EML Building, No. 61, W. A. D. Ramanayaka Mawatha, Colombo 02 *of the other part*

STATEMENT OF MATTER IN DISPUTE**The matter in dispute between the aforesaid parties is -**

Whether the 49 employees inclusive of R. A. S. Lionel Premasiri, mentioned in the schedule had been caused injustice by the Voluntary Retirement Compensation Scheme not being followed in the termination of employees from Mihin Lanka (Pvt) Ltd in accordance with Public Enterprise Circular No. 02/2016 dated 08.03.2016 introduced by the Ministry of Finance for surplus workers of public enterprises and a less favourable method being followed and if such injustice had been caused, to what relief each of them is entitled.

A. WIMALAWEERA,
Commissioner of Labour.

Dated at the Office of the Commissioner of Labour,
Colombo this 12th day of March, 2019.

01. Ruwanpura Andiris Silvalage Lionel Premasiri
02. Luliyana Kingsford Demian Perera
03. Jude Wollens Felix Batcho
04. Kaushala Iromi Silva
05. Selvaraj Krishanth
06. Nirmala Airangani Fernando
07. Balasooriyage Shanika Thushani Senasekara
08. Hettiarachchige Sisil Pamarathne
09. Hettiarachchige Upul Rohana
10. Jayawickrama Upananda Liyanage
11. Malnada Marakala Anoma Sirisena
12. Fansisco Hewage Jayantha Premasiri
13. Mahagedara Withanage Nilmini Kumari
14. Janaka Prasad Subasinghe
15. Sohan Denmand Kurushantha Warnakulasooriya
16. Tharanga Laksiri Gunarathne
17. Abdul Kadar Mohammad Hadil Sheham
18. Dhawundage Thilan Lasantha Wickramasekara
19. Wickramasooriya Arachchige Asela Madhawa Bandara
20. Thennakoon Mudiyansele Kalana Upasanka Thennakoon
21. Thilina Jeewantha Wickramasinghe
22. Hikkaduwa Dines Laksan Rodrigo
23. Hewa Gajanayaka Paththinige Pushpanjali Samantha Ramani
24. Samantha Methsiri Abeyrathne Senanayake
25. Don Suren Aloka Hettiarachchi
26. Mohammad Rashik Mohammad Nafeel
27. Merenchi Kankanamge Dilan Chaminda

28. Dissanayaka Mudiyanse Udayanga Pushpakumara Dissanayake
29. Wickramathilake Wedaarachchige Jayasanka Chandana Udayarathne
30. Ranasinghe Arachchige Nuwan Kantha Ranasinghe
31. Nalawanthage Ternil Arunasiri Nalawatta
32. Koswatta Pathirannahalage Nalaka Gunawardena
33. Gamage Isuru Priyankara
34. Suhadini Sithara Pujitha Gunawardena
35. Galagedarage Irosh Niranga
36. Kalubowilage Dasun Malinda Fernando
37. Udunuwarage Nayomi Rangika Wijewardena
38. Kanishka Athukorala
39. Dissanayaka Mudiyanse Savinda Suneth Dissanayake
40. Diyaulage Arunoda Ranasinghe
41. Yatidemawaka Gedara Sajith Chathuranga Peter
42. Dunumala Rajapakshage Udari Vidushika Rajapaksha
43. Hewakapuge Gihan Asanka Kamara
44. Warnakulasooriya Niwad Andro Fernando
45. Jayakody Arachchilage Deema Mayon Jayakody
46. Horathalage Asmi Nuwan Senewirathne
47. Jayakody Aarachchilage Deshan Wimukthi Jayakody
48. Kanchakaduge Manusha Nishani Fernando
49. S. L. D. R. Fernando

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